

ONLYGIGZ

PRIVACY POLICY

Effective Date: July 12, 2026

This Privacy Policy explains how ONLYGIGZ, LLC (“OnlyGigz,” “we,” “us”) collects, uses, shares, and protects information through the OnlyGigz App, Admin Dashboard, and website (collectively, the “Platform”). It applies to Musicians, Organizers/Venues, and anyone else who visits or uses the Platform, and should be read together with our Terms and Conditions.

This Policy covers information we collect through the Platform, through emails, texts, or other electronic messages between you and OnlyGigz, and when you interact with our ads or content on third-party sites that link back to this Policy. It does not cover information collected by any third party through their own websites, apps, or services, even if they link to or integrate with the Platform — including listings imported by the Aggregation Module, which are addressed separately in Section 6 below.

By accessing or using the Platform, you agree to this Privacy Policy. If you do not agree with our practices, please do not use the Platform.

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1. Children's Privacy

The Platform is not directed to children under 13 (or under 16 where required by local law), and we do not knowingly collect personal information from them. No one under 13 may provide information to the Platform. If we learn that a child has provided us personal information, we will delete it. If you believe we may have collected information from a child, contact us at admin@onlygigz.app.

2. Information We Collect

We collect information directly from you, automatically as you use the Platform, and in some cases from third parties (for example, publicly available Gig postings imported, described in Section 6). The categories of information we collect include:

- Account & profile information: name, email, phone number, password, profile photo, bio, genre, skills/instruments, pricing, and (for Organizers) business/venue name and location.
- Portfolio content: performance photos, video clips, and audio samples you upload.
- Availability data: the dates and times you mark as available or unavailable, used by the Matching Engine and by Organizers when booking.
- Verification & tax documents: if you upload identity documents (government-issued ID), tax forms (e.g., 1099s, which may include a Social Security Number or Taxpayer ID), or certifications, we collect and securely store those files. This is sensitive information — see Section 3 for how it's protected.
- Payment & escrow information: billing and payout details, including bank or card information, are collected and stored directly by Stripe, our payment processor; OnlyGigz does not store full card numbers or bank account credentials. We retain transaction and escrow-status metadata (amount, dates, status, Booking reference) needed to operate the Platform.
- Gig Contracts: auto-generated contracts and the electronic signatures applied to them.
- Booking & communications data: messages between Musicians and Organizers, applications, Booking details, and reviews/ratings.
- Location data: approximate location (city/region) used for Gig matching and distance-based search; precise device location only if you enable it.
- Device & usage data: IP address, device type, operating system, app version, log data, crash reports, push-notification tokens, and how you interact with the Platform, including through cookies and similar technologies described in Section 8.

Most of this information is provided directly by you — for example, when you register, complete your profile, apply to or post a Gig, upload a document, message another User, or contact us. Some information (device and usage data, approximate location, cookies) is collected automatically as you use the Platform. This information may be linked to your account or may be aggregated statistical data that does not identify you individually.

3. Sensitive Documents: How We Protect Them

Identity documents, tax forms, and certifications you upload are treated as sensitive information:

- Stored encrypted, separately from general profile data.
- Accessible only to authorized OnlyGigz Admin personnel for identity verification, tax/compliance, and fraud-prevention purposes — never shown to Organizers, other Musicians, or the public.
- Retained only as long as needed for verification and legal/tax recordkeeping purposes, and deleted on request subject to any legal retention obligations (for example, tax records that must be kept for a statutory period).

4. How We Use Information

We use the information described above to:

- Operate the Platform: account creation, profile display, Gig posting/browsing, Bookings, messaging, and notifications.
- Process payments and escrow, including facilitating payouts via Stripe and generating/storing Gig Contracts and e-signatures.
- Verify identity and tax status using uploaded documents, and maintain records for compliance.
- Power the Matching Engine, which recommends Gigs to Musicians and surfaces candidates to Organizers using profile, availability, genre, location, budget, and experience data.
- Run automated AI classification and spam/fraud detection on all Gig listings.
- Monitor for fraud, abuse, and Terms violations, and keep the Platform secure.
- Analyze and improve the Platform and deliver a more personalized experience, including estimating our user base and usage patterns.
- Send push notifications and other service communications; with your consent, marketing communications about OnlyGigz's own services.
- Comply with legal obligations, including tax reporting where applicable.

If you do not want us to use your contact information to promote OnlyGigz's own services, you can adjust your notification and marketing preferences in your account settings, or use the unsubscribe link in any marketing email. This does not affect service communications tied to your account or an active Booking.

5. Automated Matching & Fraud Screening

The Matching Engine and AI classification/spam-fraud detection systems process profile, availability, and Gig data to generate recommendations and flag suspicious listings automatically. These tools inform what you see (e.g., recommended Gigs) and support Admin review of imported listings, but Admin — not the algorithm alone — makes final decisions on account or listing actions with material consequences (e.g., removing a Gig or suspending an account).

6. Gig Listings from Public Sources

OnlyGigz automatically imports publicly available Gig postings from third-party public sources, including Eventbrite, Craigslist, and community or venue boards. These imported listings may include information about individuals or businesses (such as an event organizer's name or contact details) who have not created an OnlyGigz account.

- We only collect information that was already publicly posted by the source.
- This information is used to populate Gig listings and, where applicable, to create an Admin-issued account the relevant business or individual can later claim (see Terms, Section 2).

If you are not an OnlyGigz User but believe your information was imported and want it corrected or removed, contact us at admin@onlygigz.app.

7. How We Share Information

We do not sell your personal information for money. We share information in these circumstances:

- With other Users: your profile, portfolio, availability, reviews, and (for confirmed Bookings) contact and messaging details are visible to the counterparty as part of the Platform's normal function. Verification documents are never shared with other Users.

- With Stripe: to process payments, escrow, and payouts, subject to Stripe's own privacy policy and terms.
- With e-signature and document-storage providers: to generate, sign, and securely store Gig Contracts and uploaded documents.
- With service providers: hosting, cloud storage, push-notification, analytics, and customer-support vendors who process data on our behalf under confidentiality obligations.
- Aggregated or de-identified information: we may disclose statistics or other data that does not identify any individual without restriction.
- For legal reasons: to comply with law, respond to legal process, or protect the rights, safety, or property of OnlyGigz, our Users, or the public, including in connection with enforcing our Terms or investigating intellectual-property or fraud complaints.
- Business transfers: in connection with a merger, acquisition, financing, reorganization, or sale of assets, subject to standard confidentiality protections.

If we use analytics, advertising, or similar tracking partners that would qualify as a “sale” or “sharing” of personal information under applicable law (for example, disclosing device or usage identifiers to an ad partner for cross-context targeted advertising), you can opt out as described in Section 9 below. Any consent or opt-in you provide for text or push notifications will never be shared with third parties for marketing purposes.

8. Cookies & Tracking Technologies

The Platform uses cookies, mobile device identifiers, web beacons/pixels, and similar technologies to keep you logged in, remember preferences, understand usage (analytics), and measure the performance of in-app content. Web beacons and pixels are typically small, largely anonymous files used to count visits or confirm an email was opened; we and our service providers may also use them to understand how the Platform is used.

You can control cookies through your browser or device settings; disabling some may limit functionality, such as staying logged in or receiving personalized Gig recommendations.

9. Choices About How We Use and Disclose Your Information

You have the following controls over your information:

- Tracking technologies: adjust your browser or device settings to block or limit cookies and similar technologies, understanding that some Platform features may not work properly as a result.
- Marketing communications: opt out of promotional emails via the unsubscribe link, or adjust your notification preferences in the app. This does not opt you out of transactional or service-related messages tied to your account or Bookings.
- Push notifications and location: control permissions at any time through your device settings.

Do Not Sell or Share My Personal Information

To the extent OnlyGigz's use of analytics, advertising, or similar tracking technologies qualifies as a “sale” or “sharing” of personal information under the CCPA or a similar state law, you can opt out at any time by:

- Emailing **admin@onlygigz.app** with the subject line “Do Not Sell or Share My Personal Information,” or
- Enabling a recognized opt-out preference signal in your browser, such as Global Privacy Control (GPC), which we will honor as a valid opt-out request for that browser on that device.

Once you opt out, we will not sell or share your personal information going forward unless you later opt back in. Opting out does not delete information already collected; use the deletion request process in Section 11 for that. We will not discriminate against you — for example, by denying service or charging a different rate — because you exercised this choice.

Additional choices available to residents of certain states are described in Section 12 below.

10. Data Retention

We retain personal information for as long as reasonably necessary for the purposes described in this Policy, or as required by law:

- Account, profile, and Booking data is retained while your account is active and as needed for legal, tax, and accounting purposes.
- Verification documents (IDs, tax forms, certifications) are retained only as long as needed for verification and compliance, per Section 3.
- Signed Gig Contracts and transaction/escrow records are retained for recordkeeping and dispute-resolution purposes, consistent with applicable financial and tax recordkeeping requirements.
- Device, usage, and cookie data is generally retained for shorter analytics-related periods unless needed for security or fraud investigation.

Where information is used for more than one purpose, we retain it until the last applicable purpose no longer requires it.

11. Deletion of Your Personal Information

You can edit or delete most of your account information directly in the app. To request deletion of your account or other personal data we hold, contact us at admin@onlygigz.app. After verifying your request, we will delete the applicable information from our active records, subject to exceptions such as:

- Completing a transaction or Booking already in progress, or a service you've already paid for.
- Detecting, investigating, or preventing security incidents, fraud, or other malicious activity.
- Complying with a legal or tax recordkeeping obligation.
- Resolving an open dispute between Users.

We cannot control, and are not responsible for, copies of your information that other Users may have already saved (for example, contact details exchanged during a completed Booking) before your deletion request.

12. Your Rights & Choices by Jurisdiction

Depending on where you live, you may have additional rights described below.

A. California Residents

This section is provided under the California Consumer Privacy Act, as amended by the California Privacy Rights Act ("CCPA").

Categories of Personal Information We Collect and Why

- Identifiers (name, address, email, phone, IP address, and Social Security/Taxpayer ID if provided on tax forms) — used to operate the Platform, communicate with you, and meet our contractual and legal obligations.
- Commercial information (billing and payout details, transaction history) — used to process Bookings, escrow, and payouts.
- Internet or network activity (device data, IP address, cookies, usage patterns) — used to operate, secure, and improve the Platform.
- Audio, visual, or similar information (portfolio photos, video, and audio samples) — used to display your profile and Gig listings.

- Sensitive personal information (government ID, Social Security/Taxpayer ID on tax forms) — used solely for identity verification and tax/legal compliance, as described in Section 3.

We do not sell personal information for money. Depending on the analytics and advertising technologies we use on the Platform, certain disclosures to service providers or ad partners may be considered a “sale” or “sharing” under the CCPA’s broad definitions; the opt-out described below lets you turn this off regardless. We have no actual knowledge that we sell or share the personal information of minors under 16.

Your CCPA Rights

- Right to Know/Access — request the categories and specific pieces of personal information we’ve collected, the sources, our purposes for collecting it, and the categories of third parties we’ve shared it with.
- Right to Delete — request deletion of personal information we collected from you, subject to the exceptions in Section 11.
- Right to Correct — request correction of inaccurate personal information.
- Right to Opt Out of Sale/Sharing — opt out of any sale or sharing of your personal information, including for cross-context targeted advertising, using the process in Section 9 (“Do Not Sell or Share My Personal Information”).
- Right to Limit Use of Sensitive Personal Information — we only use sensitive personal information (ID and tax documents) for verification and compliance, not for purposes requiring this opt-out.
- Right to Non-Discrimination — we will not deny you service, charge different rates, or provide a different level of service because you exercised a CCPA right.

To exercise these rights, email **admin@onlygigz.app** with enough detail (full name, account email) for us to verify you or your authorized agent. We will respond within 45 days, with one 45-day extension available if reasonably necessary. If we decline to act on a request, you may appeal by replying to our decision email; we will respond to appeals within 60 days, and you may also contact the California Attorney General.

B. Louisiana Residents

If OnlyGigz meets the applicability thresholds under the Louisiana Data Privacy Act (LDPA), effective January 1, 2027, you may have the right to confirm whether we’re processing your personal data and access it, correct inaccuracies, delete personal data you’ve provided or that we’ve obtained about you, receive a portable copy of your data in a readily usable format, and opt out of targeted advertising, the sale of personal data, or profiling that produces a legal or similarly significant effect concerning you — including automated decisions made by our AI-matching or fraud-classification systems.

To exercise these rights, contact us at **admin@onlygigz.app**, or use the “Do Not Sell or Share My Personal Information” process in Section 9 to opt out of targeted advertising or sale of personal data specifically. We will respond within 45 days, with one 45-day extension available if reasonably necessary. You may also designate an authorized agent, including through a recognized opt-out preference signal, to submit requests on your behalf. If we decline to act on your request, you may appeal by contacting us, and if the appeal is denied, you may contact the Louisiana Attorney General.

C. Other U.S. States

If you live in a state with its own comprehensive privacy law (for example, Colorado, Connecticut, Virginia, or similar laws), you may have rights similar to those described above for Louisiana residents — including the right to access, correct, delete, and port your personal data, and to opt out of targeted advertising, sale of personal data, or profiling with legal or similarly significant effects. To exercise these rights, contact us at **admin@onlygigz.app**; we will respond within the time period required by your state’s law and will provide an appeal path if we decline to act on a request.

D. Nevada Residents

Nevada law (NRS 603A) gives Nevada consumers the right to opt out of the sale of certain covered information to data brokers for monetary consideration. This is narrower than the CCPA or LDPA rights described above — it does not include a general right to access, correct, delete, or port your data. OnlyGigz does not sell covered information as defined under Nevada law. If you would like to submit a verified opt-out request regardless, you may contact us at admin@onlygigz.app; we will respond within the timeframe required by Nevada law.

E. International Users

The Platform is intended for use within the United States and is not directed at users located outside the U.S. If you access the Platform from the European Union, United Kingdom, or another jurisdiction with data protection laws that differ from U.S. law, please be aware that your information will be transferred to and processed in the United States, which may not offer the same level of protection as your home jurisdiction.

13. User Contributions

Content you choose to post or share on the Platform — such as your profile, portfolio, availability, and messages — is shared with other Users and, where applicable, displayed publicly as part of the Platform's normal operation. You share this content at your own risk. While we use reasonable safeguards, no security measure is perfect, and we cannot guarantee that content you share with another User won't be retained, copied, or misused by that User after it's shared, or that public profile information won't be viewed by people you didn't intend to see it.

14. Data Security

We use technical and organizational safeguards designed to protect your information, including encryption of sensitive documents, encryption in transit, and role-based access controls limiting document access to authorized Admin personnel. Payment card data is handled directly by Stripe under PCI-DSS-compliant infrastructure, not stored on OnlyGigz's own servers.

In the event of a security incident that compromises the confidentiality, integrity, or availability of your personal information, we will notify affected users and, where required, applicable regulators as required by applicable law, including the Louisiana Database Security Breach Notification Law (La. R.S. 51:3071 et seq.) and other applicable state breach notification statutes.

You're responsible for keeping your account password confidential and for any activity that occurs under your login. No transmission over the internet is completely secure, and while we work to protect your information, we cannot guarantee its absolute security; any transmission is at your own risk.

15. Changes to This Policy

We may update this Privacy Policy from time to time. We'll notify you of material changes through the app or by email, and such changes will take effect no earlier than 30 days after notice unless a shorter period is required by law or necessary to address a security issue. Non-material changes and clarifications take effect upon posting, and we will update the Effective Date above. Continued use of the Platform after a change takes effect constitutes acceptance of the updated Policy.

16. Contact Us

Questions about this Privacy Policy or your data can be sent to admin@onlygigz.app.

ONLYGIGZ, LLC — St. Landry Parish, Louisiana